



File No: EXP202305408

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 3, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, BBVA), through the agreement that is transcribed:

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File No: EXP202305408

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on March 10, 2023. The complaint is directed against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that, together with his wife, he requested information from the respondent regarding a mortgage loan. He states that the respondent, without his consent, signed (posing as the claimant) a document entitled "Personal Data Protection Policy and Economic Activity Declaration," with the same occurring for his wife, neither of whom recognize the handwritten signatures on the aforementioned documents. He states that he went to a branch of the respondent to explain what had happened, indicating that they should have contacted the client to come to the office and sign the corresponding documentation, but that the employee who attended to him indicated that it is something they usually do as a matter of course "to expedite the procedures."

Along with the complaint, he provides a copy of the disputed documentation, dated (...), which contains the personal data of the claimant, as well as three checked boxes relating to the granting of consent for the processing of his personal data for commercial purposes by the respondent and collaborating companies, as well as for profiling. This document contains a handwritten signature. He also provides another document relating to his wife, under identical conditions.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 2, 2023, as stated in the acknowledgment of receipt in the file.

On May 3, 2023, this Agency received a letter requesting information and stating the following:

"That on May 2, 2023, my represented party was notified of the 'Forwarding of complaint and request for information' in relation to file number EXP202305408.

II. From the documentation accompanying the complaint, it is not possible for my represented party to identify the claimant and respond to the request, due to the fact that documents Annex 1 and 2 do not contain information.

Document number 1 'Forwarding of complaint and Request for information' is attached to substantiate the above.

III. For the above reasons, we request that this Agency forward to us again the reference File, with the documents that allow my represented party to identify the claimant and on which the complaint is

based."

On June 9, 2023, this Agency forwarded a letter stating that it was considered that access to a copy of the requested documents was not appropriate since what was necessary had already been sent to enable a response to the forwarding, again requiring that, within the established period from the receipt of the letter of request for information from this Agency, notified on May 2, 2023, all the required information be provided.

THIRD: On June 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On June 16, 2023, this Agency received a response letter indicating that the information sent is insufficient due to the information being illegible and that they cannot respond to the request, specifically stating the following:

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"On 28/04/2023, my client communicated to the AEPD that the transfer received did not include the claimant's data for identification and that the annexes 1 and 2 that were attached did not contain information, requesting a new transfer of the complaint and a new deadline. III. On 13/06/2023, we were provided with the communication referenced EXP202305408 and subject 'Request for a copy of the file', indicating that access to the copy of the requested documents is not appropriate since what was necessary for them to respond to the transfer had already been sent."

A new transfer of the complaint is made, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and was received on 28/07/2023 as evidenced by the acknowledgment of receipt in the file.

On 27/09/2023, this Agency received a written response indicating among other things, the following:

"It was communicated in writing to A.A.A. the decision agreed upon by my client regarding the complaint filed with this Agency, as evidenced in Document No. 1 that is attached.

In it, it is communicated that the facts reported by the claimant have been brought to the attention of the responsible parties so that the necessary measures can be adopted to correct situations such as those reported by A.A.A.

Likewise, for your information, it is reported that, currently, there are no active positions in the entity either in their name or in that of their spouse.

The aforementioned communication was sent by postal mail to the address listed in the transfer of complaint that this Agency has sent us, that is, ***ADDRESS.1.

Consequently, my client has complied with all the legal obligations provided for in the GDPR regarding the processing of personal data and the free movement of such data, responding to the request made by A.A.A.

Likewise, as stated in the response given by the SAC in this regard, the facts reported by the claimant have been brought to the attention of the corresponding department in order to take the appropriate measures so that, in the future, similar situations do not occur.

In light of all the above, I REQUEST THIS AGENCY to consider the request made as answered, within the referenced procedure, and, in any case, BBVA remains at the disposal of this Agency in order to clarify, expand, or explain the information provided."

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FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control

authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

The facts are from January 10, 2023, and the complaining party states in their complaint of March 10 that they went to the branch of the complained party to report the falsity in the signatures.

The complained party responds in the transfer on September 27, stating that they have addressed the complaint by sending a written response to the complaining party, dated September 26.

The complained party does not respond to the rest of the information requested by this AEPD in the transfer.

In the records of the RAT provided by the complained party, the documents "General Privacy and Data Protection Policy of the Entity" and "Corporate Standard on Blocking and Deletion of Data" are mentioned as organizational security measures.

In the second request from this Agency, information is requested from the complained party regarding the retention of documents containing personal data:

"BBVA document describing the retention policy for the same, or, failing that, a description of it," and "Retention period established for each type of document, or for each category of personal data appearing in the documents, from those appearing in the documentary set of the affected parties provided by BBVA on January 30."

The complained party does not provide documents; in response, they state:

"[...] in the personal data protection policy for clients, it is stated that personal data will be retained during the duration of the contractual relationship or as long as they are necessary for the specific purpose of each processing. Additionally, once the contractual relationship has ended, the data will be retained (i) to comply with the legal obligations incumbent upon the Entity, such as compliance with the retention periods established by the legislator that must be observed in relation to specific cases or subjects (e.g., prevention of money laundering) and (ii) during the legal limitation periods for the exclusive purposes of formulating and defending claims or legal actions, allowing the exercise of the right to effective judicial protection.

Finally, it should be noted that, for the successful implementation of the defined technical and organizational measures, the following controls have been established:

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Once a year, Compliance will review the authorizations granted for access to blocked data and ensure that they have complied with the established prior verification process.

Annual review of the rules and procedures to verify whether they remain applicable in all their terms or if they require any modification or adaptation. The rules and procedures are published and available to all employees on the intranet.

Periodic controls to ensure compliance with the blocking procedure. The control of customer data blocking is implemented in the systems and is executed automatically. Additionally, on an annual basis, the proper functioning is verified.

Signature of the documents:

The claimant stated that the respondent sent them the data protection documents, that they did not sign them, and that they do not recognize the signatures appearing on them.

In the documents submitted with the complaint, "PERSONAL DATA PROTECTION POLICY AND ECONOMIC ACTIVITY STATEMENT," with the details of the claimant and their spouse, the consent options from page 5 are indicated, the signatures on page 40, as well as the expression "IN-PERSON ATTENTION OFFICE" in the signature certification at the bottom of page 42.

The respondent states:

"First of all, we must take into account that, currently, it is not possible to sign the LOPD (document submitted in the complaint) by hand in the commercial offices; it must be signed on the corresponding

tablet. Therefore, when collecting a client's signature, the DIFERIDA signature option will be selected first.

It is noteworthy that the option to defer the signature is only allowed for pre-contractual, contractual, and mandatory personal documentation. Likewise, remote signing is only for Natural Persons. When deferring a signature, a series of email notifications are generated both to the client and to the manager [...]

Once the document has been signed through remote signing, it will be automatically archived in the client's Digital Library (Contract Library) with the digital fingerprint embedded at the end of the document containing information regarding the channel, the date, and the time at which the signature was made by the client, as is the case here where all the documentation signed by the claimants, as well as that provided by them, is found in their Contract Library.

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Similarly, there are other ways to sign the LOPD, such as through the website bbva.es, the BBVA app, mobile phone, etc.

The contractual relationship with the claimants is extensive over time, and there are numerous documents signed by them that demonstrate that, except for the case at hand, BBVA has always acted with the utmost diligence and respect for data protection regulations. In the case at hand, an isolated and specific fact, once BBVA became aware of what happened, it proceeded to investigate the facts. From the investigation, it is evident that the office manager did not respect the procedure for signing documents by clients despite BBVA having established the necessary processes for obtaining client signatures, and the employees are fully aware of these processes."

The respondent submitted, along with their response to the request, on 01/25/2024, a video that provides instructions for their employees on the need not to pre-check the consent boxes on the documents and to supervise the signing locations by clients.

The following excerpt is taken from the submitted material:

(...)

When requested again for information on 03/13/2024, the respondent, in their response dated 04/18/2024, repeats the statements already made and submits, along with their response, two identical videos to the one already submitted in their previous response to the first request.

They also submit another video that contains instructions on the need not to provide client information to unauthorized third parties, and another video that reiterates what has already been mentioned, from which the following excerpt is taken:

(...)

The respondent also states in their response of 04/18/2024 regarding the dissemination of their communications:

"Regarding the document that outlines the procedure that employees must follow concerning the signing of documents by clients, this representation has already submitted as document No. 6 of the letter presented on 01/25/2024, the explanatory video of the aforementioned procedure that was sent at the time to all employees for their knowledge and application through the internal communication HOY.

However, this representation submits again the aforementioned video outlining the procedure as document No. 1.

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Regarding the accreditation of knowledge of the aforementioned procedure by the employees, the

communication TODAY that included the mentioned video was sent to Commercial Banking with a total of 12,617 recipients and to the Central Services of the Entity, with a total of 2,602 recipients.”

The claimed party also states in its response dated 04/18/2024:

“[...] the main measure adopted by BBVA regarding the facts that concern us here was to inform the Internal Audit department of the Entity to carry out an internal investigation. [...] the results of the investigation were submitted to the Entity's Disciplinary Committee for its decision [...]”

“[...] The Internal Audit department of the Entity has the function, among others, of contributing to the BBVA Group's compliance with its objectives by providing objective assurance, advice, and risk-based knowledge to evaluate and improve risk management. Among the main tasks of this function, we find providing independent verification and assurance that the units and activities of the BBVA Group [...] comply with the defined internal policies, standards, and procedures and the applicable external regulations.”

“In short, BBVA has a specialized department to (i) detect possible actions contrary to the defined internal procedures or the applicable external regulations and (ii) investigate actions of this nature that come to its attention to ensure that the involved individuals cease such actions and that their conduct causes the least negative impact on the Entity's clients.”

“To this end, BBVA has various measures consisting of, for example:”

“Sending warning notices about bad practices to the entire network of offices. For example, the one generated in March 2024 indicated the importance of the correct use of personal data. These warning notices provide employees with information on how to assist clients in specific cases, the consequences of not heeding such warnings, as well as various tips and reminders related to customer service.”

(...)

“For May of this year, the corresponding warning notice is scheduled to be sent to all employees reminding them of the need to have the clients' documentation duly signed.”

“Quality checks of signatures on documents signed on tablets by the office network. Currently, an average of 750 reviews are conducted each month to identify the consistency of the signature with the comparison of the digitized signature in BBVA's systems.”

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“Office visits. Each year, around 1,000 of the 1,848 existing offices are visited. Various checks are carried out in them, and during these visits, the importance of orthodoxy in performing the job is emphasized, including the relevance, among others, of the LOPD documents.”

FIFTH: According to the report obtained from the AXESOR tool, the entity BANCO BILBAO VIZCAYA ARGENTARIA, S.A. is a (...) established in the year 1900, with a business volume of (...) euros and (...) employees, in the year 2023.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data since the claimed party processes the personal data of the complainant such as: name and surname, national identity document number, address, date of birth, marital status, education level, income.

Likewise, the claimed party carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR: “data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing.

III

Obligation Breached. Legality of Processing

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

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Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In this case, there is a document in the file, submitted along with the complaint, which contains the personal data of the complainant along with a handwritten signature that they do not recognize as their own. In this document, three boxes were marked regarding the granting of consent for the processing of the complainant's personal data for commercial purposes by the entity being complained about and collaborating companies, as well as for profiling purposes.

Upon submission of the complaint, the responding party stated, after investigating the facts, that “the manager of the bank branch did not respect the procedure for signing documents by clients.” The responding party thus seems to acknowledge the facts and, therefore, the alleged absence of a legal basis for the processing of the complainant's personal data.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that there was processing of data without a legal basis, as correct personal data of the complainant was being related to a signature that is not theirs; likewise, the boxes for consent to the processing of their personal data for commercial purposes by the entity being complained about and collaborating companies, as well as for profiling purposes, were marked, facts that could constitute an infringement, attributable to the responding party for violating the principle of lawfulness provided for in Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement

The known facts could constitute an infringement classified under Article 83.5 a) of the GDPR, which stipulates the following:

5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the limitation period for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, very serious infringements that constitute a substantial violation of the articles mentioned therein shall prescribe after three years, and in particular the following:

(...) b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.”

V

Proposal for sanction

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered (paragraph a): due to the seriousness of identity theft as personnel of the responding party signed documents in the name of the complainant.

As an aggravating factor:

- Any previous infringement committed by the controller or processor (paragraph e): The entity has been previously sanctioned for other infringements.

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GDPR, LOPDGDD. Only in the last year, those related to PS/00677/2022, PS/00147/2023, PS/00456/2022, and PS/00115/2023 are recorded.

Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As an aggravating factor:

- The connection of the infringer's activity with the processing of personal data (section b): the party being claimed, for the development of its activity, carries out a high volume of personal data processing.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial administrative fine of 200,000.00 euros to be set.

VI

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an

administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of said regulation, an administrative fine of 200,000.00 euros, without prejudice to what results from the instruction.

Without prejudice to what results from the instruction, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine. However, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the person allegedly responsible for the infringement, said sanction would be replaced by the declaration of the infringement.

FIFTH: TO NOTIFY this agreement to BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 160,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 160,000.00 euros and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made

within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution.

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In this case, if both reductions were to be applied, the amount of the sanction would be established at 120,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

For these purposes, in the event of opting for either of them, a formal communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction must be sent to the General Subdirectorate of Data Inspection, indicating which of the two reductions is being accepted or if both are being accepted.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (160,000.00 euros or 120,000.00 euros), you must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of payment to the General Subdirectorate of Inspection along with the formal communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will become void, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 17, 2024, BBVA proceeded to pay the sanction in the amount of 120,000.00 euros, making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

LEGAL GROUNDS

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the initiation agreement notified informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two

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reductions, the penalty would be set at 120,000.00 euros and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, BBVA has proceeded to acknowledge responsibility and voluntarily pay the penalty, availing itself of the two reductions provided. In accordance with section 3 of article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the penalty.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of penalties, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the penalties determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 200,000.00 euros.

After BANCO BILBAO VIZCAYA ARGENTARIA, S.A. has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 120,000.00 euros. The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of procedure EXP202305408, in accordance with the provisions established in article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

FOURTH: In accordance with the provisions of article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be final in the administrative pathway and fully enforceable from the moment of its notification.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative pathway as stipulated by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

However, in accordance with the provisions of article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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